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Case Number: 24PSCV03509 Hearing Date: July 2, 2026 Dept: G

Plaintiff Blanca Hernandez, Ashley Hernandez,
and Francisco Hernandez’s Motion for Attorney’s Fees, Costs, and Expenses

Respondent: Defendant American Honda Motor Co., Inc.

TENTATIVE
RULING

Plaintiff
Blanca Hernandez, Ashley Hernandez, and Francisco Hernandez’s Motion for
Attorney’s Fees, Costs, and Expenses is GRANTED in a reduced amount. The Court AWARDS Plaintiff Blanca Hernandez, Ashley Hernandez, and Francisco Hernandez a total of $11,181.90.

BACKGROUND

This
is a Song-Beverly action arising out of the purchase of an allegedly defective
motor vehicle. On October 27, 2019,
plaintiffs Blanca Hernandez, Ashley Hernandez, and Francisco Hernandez
(collectively, Plaintiffs) bought a car
manufactured by defendant American Honda Motor Co., Inc. (AHM).

On
October 18, 2024, Plaintiffs filed the
Complaint, alleging a sole cause of action for breach of express warranty in
violation of the Song-Beverly Act.

On January

5, 2026, the parties informed the court that they settled the case. On March 6, 2026, the court entered the dismissal and retained jurisdiction over the settlement.

On April 10, 2026, Plaintiffs filed this motion for attorney's fees. On June 8, 2026, AHM filed the opposition, and on June 12, 2026, Plaintiffs filed the reply.

The motion is set for hearing on June 22, 2026.

EVIDENTIARY OBJECTIONS

Plaintiffs object to a portion of the declaration from AHM's counsel. The following objection is overruled: 1.

ANALYSIS

Plaintiffs move for an award of attorney's fees and costs in the amount of $14,988.05. For the following reasons, the court GRANTS the motion for attorney's fees and costs in the reduced amount of $11,181.90.

Legal Standard

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "[T]he negotiation of a possible settlement does not excuse the failure to proceed with due diligence in the filing of pleadings, absent some understanding that pleadings need not be filed while negotiations are in process." (Turley v. Turley (1967) 254 Cal.App.2d 169, 173.) In the context of an award of attorneys' fees "the time expended by attorneys in obtaining a reasonable fee is justifiably included in the attorneys' fee application, and in the court's fee award." (Serrano v. Unruh (1982) 32 Cal.3d

621, 631.) “[I]t is inappropriate and an abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 510.)

In assessing attorney’s fees under the Song-Beverly Act, a trial court must make an “initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended is not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 817.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorneys' fees award.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) "[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) "[A]n award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) "[P]aralegal fees may be awarded as attorney's fees if the trial court deems it appropriate. . . ." (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney's fees as excessive that party must "attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) "[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

A "court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As the prevailing party, Plaintiffs are entitled to attorney's fees. To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, and the amount of costs and expenses.

Reasonableness of the Claimed Hours

The Song-Beverly Act provides for the recovery of "costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer." (Civ. Code, § 1794, subd. (d).) A verified fee bill is "prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since "padding in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Plaintiffs' counsel claims 24.9 hours of legal work. (See Kirnos Decl., Exh. A, pp. 4–5.) The verified fee bill is prima facie evidence of the legal services necessarily incurred. (Kirnos Decl., Exh. A; see Hadley, supra, 167 Cal.App.3d at 682.) To determine the reasonableness of the claimed hours, the court considers the arguments from AHM's opposition.

AHM
requests a reduction in the attorney’s fee award for vague entries. (Opp., p. 5.) “If counsel cannot . . . define [their] billing entries so as to meaningfully enlighten the court of those related to the [fee claim],” the court may “exercise its discretion in assigning a reasonable percentage to the entries,” or “simply cast them aside.” (Bell v. Vista Unified School Dist. (2000) 82 Cal.App.4th 672, 689.) Here, the court reviewed the entries cited as vague and found that they were all client communications. (See Reynolds Decl., Exh. A, pp. 1–2.) The court finds that client communications are necessarily incurred expenses in the prosecution of an action. Thus, the court declines to reduce the award of attorney’s fees for vague entries.

Therefore, the court finds Plaintiffs substantiated all of the 24.9 hours claimed by counsel in this litigation.

Reasonableness of Counsel’s Rates

The trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating, “experienced trial judges are the best judges of the value of professional services rendered in their courts.”) To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Plaintiffs’ counsel request hourly rates as outlined by this table:

Name	Admission Year	Rate
Harita Nandivada	2021	

$400

Jefferey Mukai

2010

$550

Keishunn Johnson

2023

$375

Nitin Sapra

2019

$450

Russell Higgins

2003

$600

Zachary Powell

2013 (Mo.); 2015 (Cal.)

$475

Marianne Collazo

2023 (P.R.)

$295

Mireya Segura

2019 (P.R.)

$200

Counsel's declaration provides an overview of the experience and credentials for each listed attorney and legal staff member. (Kirnos Decl., ¶¶ 1, 8–9, 13, 22–24, 27–28.) The court considered counsel's declaration, but based on a review of this case compared to other Los Angeles-area counsel in similar lemon law cases, the court finds that the rates charged by two attorneys are unreasonable. Attorneys' rates over $500 for this type of case is excessive, so the court reduces the rates of each to a maximum of $500. For Jeffrey Mukai, who billed and substantiated 2.3 hours at a rate of $550, the court reduces the attorney's fee award by $115.00. For Russell Higgins, who billed and substantiated 1.8 hours at a rate of $600, the court reduces the attorney's fee award by $581.80.

Therefore, adjusting counsels' rates for reasonableness, the appropriate award of attorney's fees is $9,667.70 before applying any multiplier.

Lodestar Multiplier

The court finds a lodestar multiplier is not appropriate. The factors that courts look at to determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum, supra, 24 Cal.4th at 1132.) "[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases." (Id. at 1138.) When a case is not complicated, "the request for a multiplier [is] specious." (Mikhaeilpoor, supra, 48 Cal.App.5th at 255.)

Plaintiffs request a lodestar multiplier of 1.3. (Mov. Brief, pp. 2, 13.) To justify the multiplier, Plaintiffs cite the contingent nature of their representation and the resulting “risk and delay in payment.” (Kirnos Decl., ¶ 3; see also Mov. Brief, p. 13.) However, the other Ketchum factors do not support applying a multiplier. This was a relatively straightforward Song-Beverly action, counsel provided adequate representation, and counsel were not precluded from other employment.

Therefore, the court declines to apply a lodestar multiplier to the award of reasonable attorney’s fees of $9,667.70.

Costs and Expenses

Plaintiffs entitled to all of the $1,514.20 in claimed costs and expenses. A prevailing plaintiff has a right to recover all costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Plaintiffs request $1,514.20 in costs and expenses in the memorandum of costs. (Kirnos Decl., Exh. B, p. 1.) The costs include filing and motion fees, jury fees, service of process, and fees for electronic filing and service. (Kirnos Decl., Exh. B, pp. 1–4.) Under Code of Civil Procedure section 1033.5, filing and motion fees, jury fees, service of process fees, and fees for electronic filing and service are recoverable costs. (Code Civ. Proc., § 1033.5, subds. (a)(1), (a)(14).) Furthermore, AHM explicitly concedes that Plaintiffs are entitled to all claimed costs. (See Opp., p. 2, fn. 1, stating, “AHM does not object to the $1,514.20 in total costs claimed by plaintiffs in their Memorandum of Costs.”)

Therefore, Plaintiffs are entitled to $1,514.20 in costs and expenses.

Accordingly, the court GRANTS the motion for attorney’s fees and costs in the reduced amount of $11,181.90.

CONCLUSION

For these reasons, the motion for attorney’s fees, costs, and expenses is GRANTED in a reduced amount. The court AWARDS Plaintiffs a total of $11,181.90.